

25NWCV03118 25NWCV03118

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV03118 Hearing Date: August 28, 2026 Dept: D

WAYNE BROWN V. CERRITOS

INFINITI

CASE NO.: 25NWCV03118

HEARING: 08/28/2026 @ 9:30 a.m.

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TENTATIVE ORDER

Plaintiff Wayne Brown's motion
for leave to file First Amended Complaint is DENIED.

Moving party(s) to give notice.

Plaintiff Wayne Brown moves for
leave to file a First Amended Complaint pursuant to Code of Civil Procedure
sections 473 subdivision (a)(1), 474, and 576.

Background

On September 2, 2026, Plaintiff
Wayne Brown ("Plaintiff") filed a Complaint against Defendant Cerritos Infiniti
Inc. ("Defendant") alleging causes of action for (1) breach of contract, (2)
fraud, (3) negligence, (4) violation of Automotive Repair Act, and (5)
financial elder abuse. Plaintiff alleges that from 2023 to 2025, Defendant
failed to perform the necessary repairs on his vehicle, while charging him for

parts and labor that were unnecessary.

Plaintiff now seeks to amend the Complaint and filed the instant motion on May 12, 2026. On June 16, 2026, Defendant filed the opposition.

Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party” (Code Civ. Proc., § 473, subd. (a)(1).) “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly” (Code Civ. Proc., § 474.) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc., § 576.) The court’s discretion should be “exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the court will not consider the validity of the proposed amended pleading when ruling on a motion to amend because it is preferable to permit the amendment and allow the parties to test the legal sufficiency of the amendment by demurrer, motion for judgment on the pleadings or other appropriate proceedings. (Id. at p. 1048.)

Under California Rules of Court

Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previously pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.
(Cal. Rules of Court, rule 3.1324(a).)

Under California Rules of Court

Rule 3.1324(b), a separate declaration must accompany the motion and must

specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Request for Judicial Notice

Defendant requests that the Court take judicial notice of the California Department of Consumer Affairs – Bureau of Automotive Repair Licensing Details for 279317. The Court takes judicial notice of this document pursuant to Evidence Code section 452 subdivision (c).

Procedural Issues

Defendant's opposition was filed one day late due to its substitution of attorney.

Analysis

Plaintiff moves to file the proposed First Amended Complaint ("FAC") on the grounds that Defendant has asserted during litigation and discovery that another entity, CAVT, LLC, allegedly owned, operated, managed, supervised, and/or controlled the dealership and repair operations conducted under the name "Cerritos Infiniti."

The Court finds that Plaintiff did not meet the requirements outlined in California Rules of Court rule 3.1324(a) because the motion does not state what allegations in the Complaint are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; nor does it state what allegations are proposed to be added to the Complaint, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Additionally, Plaintiff did not meet the requirements outlined in California Rules of Court rule 3.1324(b) because the motion does not include a separate declaration that specifies (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. Thus, the Court denies Plaintiff's motion to

file the FAC.

Conclusion

Plaintiff Wayne Brown's motion for
leave to file First Amended Complaint is DENIED.